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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, July 13, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101		
102	Do v Nguyen, 2024-01406383	MOTION FOR RECONSIDERATION – GRANTED Defendant Debbie Tuyet Nguyen (“Defendant”) moves for an order reconsidering the December 8, 2025 denial of Defendant’s Motion to Vacate and vacating the default and default judgment entered in favor of plaintiff William Chung Quang Do (“Plaintiff”) pursuant to Code of Civil Procedure section 473(b). “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008(a).) The court finds Defendant’s Motion for Reconsideration was timely filed. Defendant’s Motion to Vacate demonstrated that Defendant has lived at Tranquil Lane, Huntington Beach, CA 92646 for 16 years and she was never served with any documents in this case before default was entered against her. Thus, the purported service on April 9, 2025 at 10560 Morning Glory, Fountain Valley, CA 92708 was not proper service, as this is not Defendant’s place of residence or usual abode. (Code Civ. Proc., § 415.20(b).) Plaintiff’s opposition to the Motion to Vacate argued that service was attempted at the Huntington Beach address but after diligent attempts, there was no answer. The fact that service was attempted and could not be completed at the Huntington Beach address does not make service at the Fountain Valley address proper.

		Further, while Plaintiff's opposition to the Motion to Vacate was accompanied by a Grant Deed showing that the Fountain Valley property was granted to Defendant on January 30, 2021, this alone does not show that service was proper, as substituted service can only be made at a person's dwelling house, usual place of abode, usual place of business, or usual mailing address (Code Civ. Proc., § 415.20(b) and there is no evidence that the Fountain Valley satisfies any of these requirements. Because Defendant has proven that service was invalid, the default judgment is void and must be set aside. (Ramos v. Homeward Residential, Inc. (2014) 223 Cal.App.4th 1434, 1444 [judgment based on improper service is void]; Code Civ. Proc., § 473(d) [stating court may set aside any void judgment or order].) In light of the above, the Motion for Reconsideration is GRANTED. Upon reconsideration, the Motion to Vacate is GRANTED on the ground that service was improper, The Court ORDERS both the default and default judgment vacated. Defendant is further ORDERED to file a responsive pleading to the Complaint within 20 days. Both parties claim that the others' motion papers were never served. However, they were both able to timely file oppositions and replies, so any issues regarding service are found to have been waived. The parties are ordered to meet and confer to ensure that each side has the proper electronic service addresses for future service. Moving party to give notice.
103		
104	Integrated Demolition and Remediation v. Socal Lien Solutions, 2025-01460626	DEMURRER TO AMENDED COMPLAINT – OVERRULED Defendants Beverly Hills Law Corp., PC ("BHLC") and Sagar Parikh demur to the third, seventh, and eighth

causes of action of the Second Amended Complaint (SAC) of plaintiff Integrated Demolition and Remediation, Inc. ("Plaintiff").

The Litigation Privilege

BHLC and Parikh argue that the only allegations against them relate to communicative acts done in the course of their representation of SoCal in filing mechanic's liens and collecting monies owed and this conduct falls squarely within the litigation privilege.

Plaintiff argues the litigation privilege does not bar its claims because the gravamen of those claims is not based on what BHLC and Parikh said or filed in court but what they did with the money after it was collected with full knowledge that Plaintiff was contractually owed a share. Plaintiff argues that the latter is financial conduct, not litigation communication. Plaintiff further argues that the litigation privilege does not apply to protect against claims arising from a fraudulent scheme that merely uses litigation as its mechanism.

"The litigation privilege is codified in Civil Code section 47 (section 47): '[a] privileged publication or broadcast is one made . . . [i]n any . . . judicial proceeding. . . .' [Citation.]" (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057.) "The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. [Citations.]' [Citation.] Thus, 'communications with "some relation" to judicial proceedings' are 'absolutely immune from tort liability' by the litigation privilege [citation]. It is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards." (Ibid.)

"Because the litigation privilege protects only publications and communications, a 'threshold issue in determining the applicability' of the privilege is whether the defendant's conduct was communicative or noncommunicative. [Citation.] The distinction between

communicative and noncommunicative conduct hinges on the gravamen of the action. [Citation.] That is, the key in determining whether the privilege applies is whether the injury allegedly resulted from an act that was communicative in its essential nature. The following acts have been deemed communicative and thus protected by the litigation privilege: attorney prelitigation solicitations of potential clients and subsequent filing of pleadings in the litigation [citation], and testimonial use of the contents of illegally overheard conversation [citation].” (Id. at p. 1058.)

Plaintiff alleges that defendant Jeff Coon also known as Jeff Anderson (“Anderson”) induced Plaintiff to enter into three separate contracts, titled Claim Assignments, pursuant to which Plaintiff assigned its unpaid construction claims to defendant SoCal Lien Solutions, LLC (“SoCal”) and Defendants would recover on the claims and disburse 85% of the recovered claims to Plaintiff. Plaintiff alleges that Defendants had a common plan to defraud Plaintiff using SoCal as a vehicle and BHLC and Parikh specifically took actions as licensed attorneys to enforce the claims without ensuring that Plaintiff received any compensation while knowing that Defendants were not compensating Plaintiff.

Plaintiff’s claims against BHLC and Parikh are based on their alleged engagement in a common plan to defraud Plaintiff rather than any conduct undertaken to achieve the objects of a potential litigation. This alleged conduct is distinct from that which has been held to be communicative, such as the solicitation of potential clients and filings of pleadings, and goes beyond BHLC and Parikh’s mere representation of SoCal in its collections efforts. Thus, the SAC does not show on its face that the claims against BHLC and Parikh are barred by the litigation privilege. (See *Rickley v. Goodfriend* (2013) 212 Cal.App.4th 1136, 1163 [“privilege does not bar a civil conspiracy claim against a defendant and his or her attorney . . .”].)

Economic Loss Rule

BHLC and Parikh argue that because there is a contract between SoCal and Plaintiff and the alleged harm is purely economic, the economic loss rule bars all causes of action against them.

Plaintiff argues (1) the economic loss rule does not apply to bar intentional tort claims such as fraud and conspiracy to defraud, (2) the economic loss rule does not apply because there is no contractual relationship, and (3) the unfair competition and conspiracy causes of action arise out of duties and obligations that are independent of any contract.

The economic loss rule provides that, “[i]n general, there is no recovery in tort for negligently inflicted ‘purely economic losses,’ meaning financial harm unaccompanied by physical or property damage.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922.) “[T]he rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties” so as to prevent the law of contract and the law of tort from dissolving one into the other. (Ibid.) “The economic loss rule has been applied in various contexts. First, it carries force when courts are concerned about imposing ‘liability in an indeterminate amount for an indeterminate time to an indeterminate class.’ ” (Ibid.) “In another recurring set of circumstances, the rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties.” (Ibid.)

BHLC and Parikh contend the economic loss rule applies to Plaintiff’s claims against them because there is a contract between SoCal and Plaintiff. However, there is no dispute that there is no contract between Plaintiff and BHLC and Parikh, and thus no concern regarding the law of contract and the law of tort from dissolving one into the other if Plaintiff’s claims against BHLC and Parikh are allowed to stand. They do not argue that there is any concern of imposing liability in an indeterminate amount for an indeterminate time to an indeterminate class. Thus, their arguments regarding the economic loss rule lack merit.

Third Cause of Action for Conspiracy to Defraud

BHLC and Parikh argue this cause of action is barred by Civil Code section 1714.10(a) and there is no fraud or misrepresentation alleged against Defendants. They further argue that the agent immunity rule applies because they were acting as counsel for SoCal in an official capacity and were not personally bound by any duty to Plaintiff.

Section 1714.10(a) provides, in relevant part: “No cause of action against an attorney for a civil conspiracy with his or her client arising from any attempt to contest or compromise a claim or dispute, and which is based upon the attorney's representation of the client, shall be included in a complaint or other pleading unless the court enters an order allowing the pleading that includes the claim for civil conspiracy to be filed after the court determines that the party seeking to file the pleading has established that there is a reasonable probability that the party will prevail in the action.”

Section 1714.10(a) does not apply here because Plaintiff's action does not arise from any attempt to contest or compromise a claim or dispute between BHLC and Parikh and Plaintiff.

Defendants' agent immunity argument is based on the exceptions set forth in section 1714.10(c). (See *Central Concrete Supply Co., Inc. v. Bursak* (2010) 182 Cal.App.4th 1092, 1100.) Because section 1714.10 does not apply here, the exceptions in section 1714.10 are irrelevant to whether the SAC states sufficient facts to support a conspiracy cause of action.

While the SAC does not allege that BHLC or Parikh made any misrepresentations to Plaintiff themselves, it does allege that they acted as part of a common plan to defraud Plaintiff using SoCal as a vehicle and BHLC and Parikh agreed to collect the Claim Assignments without paying or ensuring payment to Plaintiff. These allegations support a claim for conspiracy. (*Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 510-511 [conspiracy is “a legal doctrine that imposes liability in persons who, although not actually

committing a tort themselves, share with the immediate tortfeasors a common plan or design in its perpetration.”].)

Seventh Cause of Action for Negligence

Defendants argue this cause of action fails because there is no duty owed to Plaintiff, no breach of any duty, and no causation.

Plaintiff argues that Defendants owed it a duty of care because their work was specifically intended to recover money belonging to Plaintiff. They contend that the entire purpose of the Claim Assignments was to recover construction proceeds and pay 85% to Plaintiff and the harm to Plaintiff was foreseeable and specifically known to Parikh and Defendants owed a standard of care to take reasonable steps to ensure that Plaintiff would receive its share.

Plaintiff alleges in the SAC that BHLC and Parikh were negligent in causing damage to Plaintiff by failing to protect Plaintiff's interests as the primary intended beneficiary of their work, that it was foreseeable that the failure to ensure payment to Plaintiff would cause Plaintiff harm, and that their negligence caused Plaintiff to suffer damages.

The legal authorities cited by BHLC and Parikh relate to a duty of care owed by an attorney in the conduct of his or her professional duties and state that generally, an attorney is liable for professional negligence to his or her client alone. Here, Plaintiff is not suing Defendants based on professional negligence and, therefore, the cases are inapt. Plaintiff has alleged that Defendants owed it a duty and breached that duty, causing Plaintiff monetary damages. These allegations support each element of a negligence cause of action.

Eighth Cause of Action for Unfair Business Practices

Defendants argue this cause of action fails because Plaintiff fails to identify which law was violated by Defendants, relies only on common law principles such as negligence for the unfair prong, and has not alleged

any fraudulent business practices with the required specificity.

Plaintiff contends that the SAC adequately alleges that Defendants assisted and facilitated Anderson's and SoCal's unauthorized practice of law and disregarded Plaintiff's contractual right to the proceeds.

Plaintiff alleges that Defendants have a pattern and practice of making material misrepresentations that SoCal will recover payments owed on construction claims and pay a percentage of the recovery to those who retain Defendants but then keeps the entirety of the funds. Plaintiff alleges that BHLC and Parikh worked closely with Anderson to execute this fraud against Plaintiff and were used to recover on the claims with the knowledge that Defendants would not distribute any of the recovered amounts to Plaintiff.

Section 17200 of the Business and Professions Code defines unfair competition to include "any unlawful, unfair or fraudulent business act or practice" "[T]he unfair competition law's scope is broad." (Schnall v. Hertz Corp. (2000) 78 Cal.App.4th 1144, 1153.) "Its coverage is "sweeping, embracing " "anything that can properly be called a business practice and that at the same time is forbidden by law." " (Ibid.) Section 17200 "borrows" violations of other laws and treats them as unlawful practices. (Ibid.) " "However, the law does more than just borrow. The statutory language referring to "any unlawful, unfair or fraudulent" practice [] makes clear that a practice may be deemed unfair even if not specifically proscribed by some other law." (Ibid.)

Here, the SAC read as a whole alleges that BHLC and Parikh conspired with the other Defendants to defraud Plaintiff. These allegations are sufficient to support a cause of action under the broad scope of the unfair competition statute.

BHLC and Parikh to file an answer to the SAC within 20 days.

Moving party to give notice.

		CASE MANAGEMENT CONFERENCE – CONTINUED TO 08/17/2026 AT 1:30 p.m.
105	Kim v Downing, 2024-01445812	MOTION TO SET ASIDE/VACATE DEFAULT – GRANTED Defendant Hertz Vehicles LLC (“Hertz”) moves to set aside the default entered against it by plaintiff Kelly Kyoungseon Kim. Hertz seeks relief under Code of Civil Procedure sections 473(b) and 473.5 and equitable relief under the Court’s inherent power. The Court finds that relief under sections 473(b) and 473.5 cannot be granted, as this Motion was brought more than six months after the entry of default and there is no evidence showing that Hertz did not have actual notice of the lawsuit before default was entered. “After six months from entry of default, a trial court may still vacate a default on equitable grounds even if statutory relief is unavailable.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981.) The law strongly favors an exercise of discretion in favor of granting relief so that matters can be heard on their merits. (Shapiro v. Clark (2008) 164 Cal.App.4th 1128, 1139.) Counsel’s declaration establishes that counsel for Hertz failed to file an answer on the mistaken belief that the copy of the complaint in their possession had been informally obtained and proper service had not yet been made. Counsel learned of the default on March 20, 2026. This Motion was filed shortly thereafter on April 2, 2026. The Motion is unopposed and there is no evidence that Plaintiff will suffer prejudice if the Motion is granted. Hertz’s counsel moved promptly once the entry of default was discovered. Thus, the Court finds that equitable relief is warranted.

		In light of the above, the Motion to Set Aside is GRANTED. Hertz is ordered to file and serve its answer to the complaint within 20 days. Moving party to give notice.
106	Kirton v Selene Finance, 2025-01481861	DEMURRER TO AMENDED COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Defendants Selene Finance LP and U.S. Bank Trust, as trustee of the VRMTG Asset Trust’s (together, “Defendants”) unopposed Demurrer to the First Amended Complaint (“FAC”) is SUSTAINED with leave to amend. The Court construes Plaintiff’s failure to oppose the demurrer as an abandonment of Plaintiff’s claims or an admission that the demurrer has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [“Plaintiffs did not oppose the County’s demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) The failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Plaintiff attempted to file a Second Amended Complaint which was rejected; Plaintiff believes she can amend the complaint to cure the deficiencies identified by the demurrer. The Court will therefore grant Plaintiff one final opportunity to amend the pleading. Plaintiff shall file her Second Amended Complaint within 20 days of this order. Defendant to give notice.

		CASE MANAGEMENT CONFERENCE – CONTINUED TO 09/21/2026 at 1:30 p.m.
107		
108	Lorenze v. Pakbaz, 2025-01532139	DEMURRER TO AMENDED COMPLAINT – SUSTAINED IN PART WITH LEAVE TO AMEND (as to 3rd cause of action for violation of patient access to health records act); OVERRULED AS TO ALL OTHER ISSUES Plaintiff Alexis Lorenze sued Defendants Zahra Pakbaz, M.D. and the Regents of the University of California for Medical Battery, Violation of the Elder Abuse and Dependent Adult Civil Protection Act, Violation of Patient Access to Health Records Act (Health & Safety Code § 123110), and Breach of Fiduciary Duty (Candor). (There are other causes of action to which Defendants do not demur; they will not be discussed to avoid confusion.) Defendants demur to causes of action 1, 2, 3, and 5 on the ground they fail to state facts sufficient to constitute a cause of action against Defendants, and on the ground the fifth cause of action for breach of fiduciary duty is duplicative of the medical battery cause of action. Defendants also argue causes of action 1-5 are pleading artifices to avoid the constraints of the Medical Injury Compensation Reform Act of 1974. Plaintiff alleges she was a patient at UCI Medical Center suffering from a blood disorder and from a parvovirus. Plaintiff alleges she was a candidate for a treatment that required vaccinations, and those vaccinations could not be administered until her infection was under control. Nevertheless, hospital personnel administered 3 vaccines (not the ones Plaintiff was told she would be receiving) and she immediately suffered a severe and debilitating reaction. Plaintiff also alleges the doctor who prescribed the special treatment had a financial interest in the treatment.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

Medical Battery

In order to establish a claim for medical battery, Plaintiff must prove that Defendants either (1) performed a medical procedure without plaintiff's consent, or (2) that plaintiff consented to one medical procedure but that defendants performed a substantially different procedure. Plaintiff's allegation that she was told she would be receiving one set of vaccinations when she received a different set of vaccinations meets this requirement, as does the allegation that her consent to any procedure was given under duress.

Dependent Adult Abuse/Neglect

Plaintiff meets the definition of a dependent adult, as she had been admitted as an inpatient at the hospital. (Welf & Inst. Code § 15610.23 (b).) Plaintiff alleges Defendants failed to use sufficient care to protect her from health and safety hazards and subjected her to "coercion, duress, undue influence, threat of abandonment, misidentification of the vaccines, omission of their risks and benefits, omission of federal REMS risk disclosures, omission of Dr. Pakbaz's financial conflict, and omission of information regarding the option to wait for the results of a pending Parvovirus

B19 test.” (Comp. ¶ 98) The allegations of the second cause of action meet the requirements of the Elder Abuse and Dependent Adult Civil Protection Act. (Stewart v. Superior Court (2017) 16 Cal.App.5th 87, 106-107.)

Violation of Patient Access to Health Records Act

Plaintiff alleges Defendants failed twice to timely respond to her request for production of all of her medical records, violating their duty under Health and Safety Code section 123110. (Comp. ¶¶107, 108)

Defendants argue this claim fails because Plaintiff does not (1) provide any facts regarding whether she or her nurse advocate paid reasonable costs for the records; (2) demonstrate she was deprived of information needed to make health care decisions; or (3) allege facts showing compensable damages. The demurrer is sustained with 20 days leave to amend as to the 3rd cause of action for violation of the Patient Access to Health Records Act.

Breach of Fiduciary Duty (Candor)

Defendant argues that this cause of action is merely duplicative of the medical battery cause of action because they both involve the lack of informed consent. Flowers v. Torrance Memorial Hospital (1994) 8 Cal.4th 992.

“Accordingly, we hold that a physician who is seeking a patient's consent for a medical procedure must, in order to satisfy his fiduciary duty and to obtain the patient's informed consent, disclose personal interests unrelated to the patient's health, whether research or economic, that may affect his medical judgment.” (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 131–132.)

The court finds the breach of fiduciary duty claim alleges a failure to disclose the risk of the treatment (FAC¶121, 122), resulting in an inability to provide informed consent, while the medical battery claim alleges Plaintiff was subject to coercion, duress, etc., preventing any consent.

		<u>MICRA</u> Civil Code section 3333.2 provides a cap on noneconomic damages in professional negligence cases. It does not apply to intentional torts. If appropriate, damages may be reduced by the court post-trial to comply with MICRA. It is not grounds for a demurrer. CASE MANAGEMENT CONFERENCE CONTINUED TO September 21, 2026, 1:30 p.m. Defendants to give notice.
109	National Funding v. 911 Restoration Services of Minneapolis, 2026-01543776	MOTION TO SET ASIDE/VACATE DEFAULT AND JUDGMENT – GRANTED Plaintiff National Funding, Inc.’s motion to vacate default and default judgment entered against Defendant 911 Restoration Services of Minneapolis LLC is GRANTED. Plaintiff has submitted evidence, in the form of the declaration of its counsel, that Defendant 911 Restoration Services of Minneapolis LLC filed a bankruptcy petition on March 9, 2026. (Hawley Decl. ¶ 3.) Default in this case was entered on March 23, 2026 and a default judgment was entered on April 3, 2026. 11 U.S.C. §362 imposes an automatic stay upon the filing of a bankruptcy petition, which enjoins creditors of the bankruptcy petitioner from pursuing actions against the bankruptcy petitioner. Acts in violation of the automatic stay are void. (Hillis Motors, Inc. v. Hawaii Automobile Dealers' Ass'n (9th Cir. 1993) 997 F.2d 581, 586 [actions taken by state agency to dissolve debtor corporation while stay was in effect were void]; In re Schwartz (9th Cir. 1992) 954 F.2d 569, 571; see also In re Valentine (Bankr. E.D.Cal. 2022) 648 B.R. 324, 333 [“all acts that violate the automatic stay are void without regard to any knowledge or notice of a bankruptcy case or the automatic stay”].) “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or

		orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473(d).) The Court therefore sets aside the entry of default and default judgment against Defendant 911 Restoration Services of Minneapolis LLC as void. The Court will enter an Amended Judgment removing Defendant 911 Restoration Services of Minneapolis LLC, such that the judgment will be solely against Defendant Jenna Reese. Counsel for Plaintiff shall prepare the amended judgment. The Court dismisses Defendant 911 Restoration Services of Minneapolis LLC without prejudice, as requested by Plaintiff.
110	R. v. California Physicians’ Service, 2024-01419731	MOTION FOR SUMMARY JUDGMENT – DENIED MOTION FOR SUMMARY ADJUDICATION – GRANTED IN PART AS TO THIRD CAUSE OF ACTION, DENIED ON ALL REMAINING ISSUES MOTIONS TO SEAL – GRANTED <u>Motions to Seal</u> The motion to seal portions of the opposing papers and reply papers, which is set for hearing on October 12, 2026, is ADVANCED to today’s date on the court’s own motion. Both motions to seal are GRANTED. The material covered by the motions is Protected Health Information of Plaintiff. The court’s tentative ruling is necessarily cryptic to protect Plaintiff’s protected health information. <u>Continuance</u> Plaintiff’s request for a continuance of the hearing on the motion pursuant to Code of Civil Procedure § 437c(h) is DENIED. Plaintiffs concede that “Blue Shield has produced the policies and review records that applied to V.R.’s 2024 requests.” (Opp., 19:20-21.) Plaintiffs assert that Blue Shield continues to withhold the policies, procedures, manuals, guidelines, and training materials governing the handling and review of requests like V.R.’s that were in effect after the 2024 requests and appeals, and the complete screenshots of screens and interfaces used to process V.R.’s requests, “having

produced only ‘exemplar’ screenshots.” (Opp., 19:21-27.) Plaintiffs argue that these materials are essential as they bear on whether the challenged review practices reflect Blue Shield’s ongoing, standardized policies, relevant to recurrence and to the corporate-policy and managing-agent questions. (Glovesky Decl., ¶¶ 9-11, 14.)

However, Plaintiffs fail to show how these materials are essential to oppose the instant motion for summary judgment. Nor is there good cause for a continuance for Plaintiffs to obtain these materials as they do not appear relevant to Plaintiffs’ claims in the Complaint or in opposing the motion.

New Evidence in Reply

Blue Shield submitted new evidence in reply consisting of the Declaration of LaShonda Hernandez, and Exhibits 72, 73, and 74. This evidence has not been considered by the court. “The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving or opposing papers.” (Code Civ. Proc. § 437c(b)(4).)

Law regarding Summary Judgment

A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) A plaintiff must set forth specific facts showing that a triable issue of material fact exists as to a cause of action or a defense thereto. (Ibid.)

A cause of action has no merit if either (1) one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded; or (2) a defendant establishes an affirmative defense to that cause of action. (Code Civ. Proc. § 437c(o).)

“A summary judgment may be granted only where it is shown that the entire ‘action’ ‘has no merit.’ [Citation.]” (Hypertouch, Inc. v. ValueClick, Inc. (2011) 192 Cal.App.4th 805, 834.)

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-850.) “‘[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.’ [Citation.] ‘[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.’ [Citation.]” (Nicoletti v. Kest (2023) 97 Cal.App.5th 140, 143–144.)

In determining a motion for summary judgment, the court is “required to view the evidence and the reasonable inferences therefrom in the light most favorable to the party opposing the summary judgment motion; doubts as to whether there are any triable issues must be resolved in favor of the opposing party; and equally conflicting evidence or inferences require denial of a summary judgment motion.” (Essex Ins. Co. v. Heck (2010) 186 Cal.App.4th 1513, 1522.)

Declarations provided in opposition to motions for summary judgment or summary adjudication are liberally construed while the moving party’s evidence is strictly construed. (Saelzler v. Advanced Group 400 (2001) 25 Cal.4th 763, 768.) Supporting and opposing affidavits or declarations shall be made by a person on personal knowledge, shall set forth admissible evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavits or declarations. An objection based on the failure to comply with the requirements of this

subdivision, if not made at the hearing, shall be deemed waived. (Code Civ. Proc. § 437c(d).)

There is a three-step analysis for the court to determine a summary judgment motion. (Hawkins v. Wilton (2006) 144 Cal.App.4th 936, 939-940.) “First, we identify the issues raised by the pleadings. Second, we determine whether the movant established entitlement to summary judgment, that is, whether the movant showed the opponent could not prevail on any theory raised by the pleadings. Third, if the movant has met its burden, we consider whether the opposition raised triable issues of fact.” (Ibid.)

First Cause of Action – Breach of Contract

The first cause of action for breach of contract alleges that on or about 2024, Defendant, California Physicians’ Service dba Blue Shield of California (“Blue Shield”), breached the terms of the health plan issued to V.R. by denying a request for treatment on July 12, 2024, which V.R.’s doctor, Dr. Ying Peng, determined was medically necessary for the treatment of V.R. (Comp., at pp. 3-4.) It is also alleged that Blue Shield denied V.R.’s appeal on August 1, 2024, leaving V.R. with no treatment options and a rapidly worsening disease. (Comp. at :23-24.) It is alleged that Blue Shield has wrongfully denied V.R. the only treatment available to her on two occasions. (Comp.: 5:2-3.)

Here, the following facts are undisputed. The Evidence of Coverage (“EOC”) of the operative health plan contains a provision for exclusions and limitations which states, “drugs and medicines that have received FDA approval for marketing for one or more uses will not be denied on the basis that they are being prescribed for an off-label use if the conditions set forth in California Health & Safety Code Section 1367.21 have been met.” (Plaintiffs’ Separate Statement of Undisputed Material Facts (“UMF”), 2, 3, 6.)

On July 10, 2024, a request was submitted under Plaintiffs’ health plan for prior authorization of treatment for V.R. (UMF, 9.) On July 12, 2024, Blue Shield issued a written response to Plaintiffs and Dr.

Peng, denying the request for prior authorization. (UMF, 10-12.)

On July 23, 2024, a grievance was submitted to Blue Shield in connection with the denial for prior authorization. (UMF, 14.) On July 24, 2024, Blue Shield referred Plaintiffs' grievance to Advanced Medical Reviews ("AMR"), where Plaintiffs' request was reviewed by a Board-certified specialist. (UMF, 15.) On August 1, 2024, Blue Shield issued a letter to Plaintiffs upholding its original denial. (UMF, 18.)

Blue Shield's denials on July 12, 2024, and August 1, 2024, were based on a finding that the requirements of Health & Safety Code § 1367.21 for off-label use were not met. (UMF, 13, 18.) However, Blue Shield presents no evidence, argument, or facts showing that these denials were proper, and that the conditions of Health & Safety Code § 1367.21 for off-label use were not met, as required under the EOC. As such, Blue Shield fails to meet its initial burden of production and persuasion.

The court is prohibited from granting summary judgment when the moving party has not met its initial burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1085-1086 [finding that unless the moving party has met its initial burden of proof, the court does not have discretion under subdivision (b) of section 437c to grant summary judgment based on the opposing party's failure to file a proper separate statement].) "[I]f the showing by the defendant does not support judgment in his favor, the burden does not shift to the plaintiff and the motion must be denied without regard to the plaintiff's showing. [Citation.]" (*Crouse v. Brobeck, Phleger & Harrison* (1998) 67 Cal.App.4th 1509, 1534.) Where a defendant fails to establish every fact necessary to show the causes of action against them are without merit, they fail to meet their initial burden and the motion must be denied. (*Cates v. California Gambling Control Com.* (2007) 154 Cal.App.4th 1302, 1310.)

Blue Shield argues it eventually authorized, covered, and paid all claims for treatment submitted by Plaintiffs

from December 5, 2024, through December 14, 2025. Although it is undisputed that Blue Shield eventually authorized Plaintiffs' request for treatment, and issued a letter dated October 29, 2024, to Plaintiffs informing them of this authorization, Blue Shield previously denied coverage on July 12, 2024, and continued to deny coverage on August 1, 2024, after Plaintiffs submitted a grievance on July 23, 2024. Blue Shield cites to no authority supporting its argument that eventual coverage precludes liability for prior denials of coverage, i.e., prior withholding of benefits at the time the prior requests for authorization were made.

Plaintiffs cite *McCormick v. Sentinel Life Ins. Co.* (1984) 153 Cal.App.3d 1030 for the proposition that an insurer cannot avoid liability merely because it eventually provides coverage, but that case addressed a claim of bad faith, not breach of contract. "[T]he eventual payment of medical expenses does not bar recovery for insurance bad faith. [Citations.]" (*McCormick v. Sentinel Life Ins. Co.* (1984) 153 Cal.App.3d 1030, 1050-1051.) "[A]n 'ultimate tender of benefits . . . does not defeat [a cause] of action for insurance bad faith Rather, it merely mitigates damages.' [Citation.]" (*Id.* at p. 1051.)

Nevertheless, implicit in Blue Shield's definition of "withholding of benefits" is that it means a denial of benefits after the grievance process and review has been completed, and Blue Shield maintains its denial. But if this were the case, then an insured would have no viable cause of action for breach of contract until after Blue Shield essentially denied a request for prior authorization three times.

Second Cause of Action – Breach of Implied Covenant

Blue Shield asserts that a claim for bad faith cannot be maintained unless the insurer or health plan unreasonably withheld benefits, and that Plaintiffs' claim for bad faith fails as a matter of law because the benefits at issue were paid "fully and promptly," that no benefits were withheld at all, much less in an unreasonable manner, and that Plaintiffs cannot that Blue Shield unreasonably delayed in granting coverage as Blue Shield timely reversed its initial denial pursuant

to a contractual grievance procedure that is expressly contemplated in the relevant plan document.

“Tort liability for breach of the implied covenant of good faith and fair dealing has been variously measured. The primary test is whether the insurer withheld payment of an insured’s claim unreasonably and in bad faith. [Citation.] Where benefits are withheld for proper cause, there is no breach of the implied covenant. [Citation.] The duty imposed by law is not unreasonably to withhold payments due under the policy. [Citation.]” (Love v. Fire Ins. Exchange (1990) 221 Cal.App.3d 1136, 1151.) “[T]here are at least two separate requirements to establish breach of the implied covenant: (1) benefit due under the policy must have been withheld; and (2) the reason for withholding benefits must have been unreasonable or without proper cause. [Citations.]” (Ibid.)

The second cause of action incorporates the prior allegations above, and also alleges that Blue Shield breached its duty of good faith and fair dealing by unreasonably and wrongfully failing to provide V.R. with timely coverage of medically necessary care and treatment. (Comp., 7:5-8.) It is more specifically alleged that Blue Shield breached its duty of good faith and fair dealing under the health plan by “[u]nreasonably denying benefits due under the plan,” “[u]nreasonably refusing to cover critically necessary services,” “[u]nreasonably failing to adequately investigate the request for benefits,” “[u]nreasonably making treatment decisions based on financial concerns,” “[u]nreasonably using utilization guidelines that are unreasonably stringent and stop members from receiving coverage for medically necessary care,” “[u]nreasonably failing and refusing to give at least as much consideration to Plaintiffs’ interests as they gave to their own interests,” and “[u]nreasonably engaging in the practice of preventing plan member from using covered services in order to save money.” (Comp., 7:9-20.)

Blue Shield makes the same argument as in the first cause of action, i.e., that benefits were not withheld and were paid fully and promptly because it eventually

authorized, covered, and paid all claims for treatment submitted by Plaintiffs, and relies on the same 38 material facts upon which the first cause of action relies. Blue Shield fails to meet its initial burden of persuasion and production for the same reasons discussed above as it fails to show that its denials on July 12, 2024, and August 1, 2024, were reasonable. Additionally, “the eventual payment of medical expenses does not bar recovery for insurance bad faith. [Citations.]” (McCormick v. Sentinel Life Ins. Co. (1984) 153 Cal.App.3d 1030, 1050-1051.) “[A]n ‘ultimate tender of benefits . . . does not defeat [a cause] of action for insurance bad faith Rather, it merely mitigates damages.’ [Citation.]” (Id. at p. 1051.)

Third Cause of Action - UCL

The motion for summary adjudication of the third cause of action for violation of the UCL is GRANTED. “A UCL action is equitable in nature; damages cannot be recovered.” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144.) “Injunctive relief and restitution are the only remedies available under the UCL. [Citation.]” (Esparza v. Safeway, Inc. (2019) 36 Cal.App.5th 42, 53.)

The Complaint prays for damages, interest, and attorney’s fees. The third cause of action alleges that Plaintiffs have suffered injury in fact and have lost money or property, including incurring monetary expenses for medication, as a result of Defendant’s conduct. (Complaint, 9:12-13.) Neither injunctive relief nor restitution was sought. The argument in Plaintiffs’ opposition that injunctive relief is necessary to prevent further denials or delays of coverage (Opposition, 18:2-9), was not alleged in the Complaint, and cannot be a basis to deny the motion. On a motion for summary judgment, the pleadings define the issues. (Metromedia, Inc. v. City of San Diego (1980) 26 Cal.3d 848, 885.) In the absence of some request for amendment, there is no occasion to inquire about possible issues not raised by the pleadings. (Ibid.) “ ‘The burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint. A ‘moving party need not “. . . refute

liability on some theoretical possibility not included in the pleadings.” [Citation.]’ . . . ‘ “[A] motion for summary judgment must be directed to issues raised by the pleadings. The [papers] filed in response to a defendant’s motion for summary judgment may not create issues outside the pleadings and are not a substitute for an amendment to the pleadings.” ’ ’ [Citation.]’ [Citation.]” (Lockhart v. County of Los Angeles (2007) 155 Cal.App.4th 289, 304.)

Punitive Damages

The Complaint alleges that Blue Shield’s conduct was “intended by Blue Shield to cause injury to Plaintiffs or was despicable conduct carried on by Blue Shield with a willful and conscious disregard of their rights, or was an intentional misrepresentation, deceit, or concealment of a material fact known to Blue Shield with the intention to deprive Plaintiffs of property, legal rights or to otherwise cause injury, such as to constitute malice, oppression or fraud under California Civil Code section 3294, thereby entitling Plaintiffs to punitive damages.” (Comp., 8:7-11.)

Here, Blue Shield relies on the same 38 material facts that are asserted for the first and second causes of action. As discussed above regarding the first cause of action, Blue Shield fails to produce evidence establishing that its first two denials on July 12, 2024, and August 1, 2024, were properly made on the ground that the conditions for off-label use under Health & Safety Code section 1367.21 have not been met. In turn, Blue Shield fails to show that those denials, and subsequent delays, do not constitute oppression, malice, or fraud.

Evidentiary objections

The court sustains Plaintiffs’ objections 1-7. The declarant does not establish personal knowledge of any of the facts stated in the declaration, and therefore the matters to which objection is raised lack foundation. Exhibit 16 is hearsay without an exception, as no facts establish the business records exception applies.

The court declines to rule on Defendant’s objections to Plaintiffs’ evidence. Since Blue Shield did not meet its

		initial burden, the burden did not shift to Plaintiffs and the motion must be denied without regard to Plaintiffs' evidence. "In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to the disposition of the motion." (Code Civ. Proc. § 437c(q).) Moving Party to give notice.
111	Ramirez v. FCA US, 2023-01367066	MOTION FOR SUMMARY JUDGMENT – GRANTED Defendant FCA US, LLC ("Defendant") moves for summary judgment on Plaintiff's complaint under the Song-Beverly Act. The Unopposed Motion is GRANTED pursuant to Rodriguez v. FCA US, LLC (2024) 17 Cal.5th 189. Defendant sustained its burden to establish the causes of action lack merit under Rodriguez because the subject vehicle was purchased used by Plaintiff (UMF No. 1-3) and the Song-Beverly Act only provides protection to purchasers of new motor vehicles. Thus, the burden shifted to Plaintiff to establish the existence of a triable issue of material fact. Plaintiff failed to file any opposition; and therefore failed to sustain his burden. Defendant to give notice and submit a proposed judgment.
112	Savalia v. Cigna Healthcare of Calif., 2026-01550386	DEMURRER TO COMPLAINT – SUSTAINED WITH LEAVE TO AMEND Defendant demurs to all 7 causes of action in Plaintiff's complaint. Plaintiff has not filed opposition to the demurrer. The Court may construe Plaintiff's failure to oppose the demurrer as an abandonment of Plaintiff's claims or an admission that the demurrer has merit. (See Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 ["Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue

		in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) The failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Plaintiff attempted to file an Amended Complaint which was rejected; Plaintiff believes it can amend the complaint to cure the deficiencies identified by the demurrer. The Court will therefore grant Plaintiff the opportunity to amend the pleading. Plaintiff shall file its Amended Complaint within 20 days of this order. Defendant to give notice.
113	Selene Finance v. Kirton, 2024-01412902	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT – CONTINUED DUE TO PENDENCY OF APPEAL The hearing on Plaintiff Selene Finance, LP’s renewed motion for leave to file a First Amended Complaint is CONTINUED to AUGUST 31, 2026, at 9:00 a.m. in Department N14. No further briefing will be permitted. The Court finds that the proposed amendments to the Complaint are embraced by the pending appeal (G065356), as Plaintiff seeks to remove causes of action asserted against Defendant Miller which were involved in the order appealed from. While the appellate court has issued an opinion, remittitur has not yet issued. The court notes that it “has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse

		of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Here, Defendants have shown no prejudice that will result from allowing the proposed amendment. In fact, Defendant Kirton did not file any opposition to the motion. While Defendant Miller contends that amendment would be futile, in this instance that argument is best addressed by way of demurrer, motion for judgment on the pleadings or other appropriate proceedings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760.) CASE MANAGEMENT CONFERENCE CURRENTLY SCHEDULED FOR 08/03/2026 IS CONTINUED TO 09/21/2026 at 1:30 p.m. Clerk to give notice.
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